

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Thomas Juliano	Team: Squad #05	CCRB Case #: 201802758	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 04/06/2018 5:45 PM	Location of Incident: 2nd Avenue and East Houston Street	18 Mo. SOL 10/6/2019	Precinct: 09		
Date/Time CV Reported Tue, 04/10/2018 10:10 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 04/10/2018 10:10 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Harrison Paperman	07895	959043	009 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Brian Jarnich	14246	950625	009 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Harrison Paperman	Discourtesy: Police Officer Harrison Paperman spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Harrison Paperman	Abuse: Police Officer Harrison Paperman searched § 87(2)(b)	B . Unsubstantiated

Case Summary

On April 10, 2018, § 87(2)(b) filed this complaint with the CCRB via the online website.

On April 6, 2018, § 87(2)(b) was riding his bicycle southbound on 2nd Avenue in Manhattan when PO Harrison Paperman of the 9th Precinct stopped him for running a red light. § 87(2)(b) told PO Paperman that he was running late, and PO Paperman replied, “I don’t give a shit if you’re late.” (**Allegation: A – Discourtesy, unsubstantiated**). PO Paperman asked § 87(2)(b) for an ID; however, § 87(2)(b) did not have one. PO Paperman told § 87(2)(b) to empty the contents from the pocket of his windbreaker. (**Allegation: B – Abuse of Authority, unsubstantiated**).

There are no video recordings of this incident.

Findings and Recommendations

Allegation A - Discourtesy: Police Officer Harrison Paperman spoke discourteously to

§ 87(2)(b)

Allegation B - Abuse of Authority: Police Officer Harrison Paperman searched

§ 87(2)(b)

It is undisputed that PO Paperman stopped § 87(2)(b) for riding his bicycle through a red light.

§ 87(2)(b) testified that when he told PO Paperman that he was running late, that PO Paperman replied, “I don’t give a shit if you’re late.” PO Paperman then asked § 87(2)(b) for an ID; however, § 87(2)(b) did not have one on him. PO Paperman then told § 87(2)(b) to empty his jacket pocket. § 87(2)(b) believed PO Paperman asked him to empty his pocket to prove that he did not have an ID on him.

PO Paperman denied making the statement “I don’t give a shit if you’re late.” PO Paperman denied using any type of profanity while speaking with § 87(2)(b). PO Paperman stated that he replied, “Okay, I’ll make this quick.” PO Paperman stated that § 87(2)(b) provided his ID and did not recall any issues with § 87(2)(b) providing his ID. PO Paperman did not recall telling § 87(2)(b) to show him what was in his jacket pocket. PO Paperman did not ask § 87(2)(b) to prove that he did not have an ID at any point.

PO Paperman’s partner, PO Brian Jarnich, did not hear PO Paperman make the statement, “I don’t give a shit if you’re late,” nor did he hear PO Paperman use profanity while speaking with § 87(2)(b). PO Jarnich did not hear PO Paperman tell § 87(2)(b) to empty his jacket pocket, nor did he see § 87(2)(b) empty his pocket. PO Jarnich recalled that PO Paperman had § 87(2)(b)’s ID when he prepared the summons.

No witnesses were identified and no video footage or audio recordings were recovered. (**Board Review 04**)

[REDACTED]. It is therefore recommended that **Allegations A and B** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint in which § 87(2)(b) has been a party. **(Board Review 01)**
- PO Paperman has been a member-of-service for three years and this is the fifth complaint in which he has been a party. In 201609693, an allegation of force was exonerated. In 201700157, an allegation of force was closed as complainant uncooperative. In 201703135, allegations of abuse – retaliatory summons and discourtesy – word were closed as unsubstantiated, and an allegation of abuse – threat of force was closed as exonerated. In 201804740, an allegation of discourtesy-word is currently being investigated.

§ 87(2)(g)

- In case 201703135, it was alleged that PO Paperman stated to a CV, “Step the fuck back.” The allegation was unsubstantiated.
- In case 201804740, which is currently being investigated, it was alleged that PO Paperman stated to a CV, “You know what? Fuck this. I don’t have to deal with this shit.” The allegation is currently under investigation.

Mediation, Civil and Criminal Histories

- This case was returned to investigations after an unsuccessful mediation session.
- On August 7, 2018, an inquiry was filed with the New York City Comptroller's Office to locate a notice of claim for § 87(2)(b) Results are pending. **(Board Review 02)**
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 05

Investigator: _____ Inv. Thomas Juliano _____
Signature Print Title & Name Date

Squad Leader: _____

Signature	Print Title & Name	Date
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